

1.

CASE #	CASE NAME	HEARING NAME
CVRI2403316	FREEMAN vs CITY OF RIVERSIDE	MOTION FOR SUMMARY JUDGMENT ON 2ND AMENDED COMPLAINT

Tentative Ruling:

This case arises from a car accident. On June 25, 2023, Defendant Adria Harrington was turning left out of Maple Lane onto Grove Community Drive in Riverside. Harrington stopped at the limit line, looked both ways for traffic, and inched out further. Harrington checked the road again and saw no traffic. As Harrington turned left, Plaintiff's motorcycle collided with the driver's side of Harrington's car. Harrington claims she did not see Plaintiff's vehicle until she was already in the intersection and it was too late to avoid the collision.

Plaintiff seeks damages from Harrington, the City of Riverside, Orangecrest Country HOA, Inc., Action Property Management, and Mark Hanson & Amparo S. Hanson Family Trust. Plaintiff contends the view from the limit line on Maple Lane to observe westbound traffic on Grove Community Drive is obstructed due to the curvature and slope of Grove Community Drive. Plaintiff further contends the landscaping also inhibits clear lines of sight. Plaintiff argues this constitutes a dangerous condition of public property.

Defendants Orangecrest Country HOA, Inc. and Action Property management bring the instant motion for summary judgment challenging the third and fourth causes of action for negligence and premises liability. Defendants argue they exercised reasonable care in maintaining the landscaping and breached no duty owed to Plaintiff. HOA argues it lacked notice of any dangerous condition and had no duty to anticipate a negligent motorist. Action Property argues it has no relationship whatsoever to the accident or Plaintiff.

Plaintiff filed two oppositions. In the first Opposition, Plaintiff opposes the motion on a limited basis arguing the instant action is stayed while Plaintiff appeals the court's prior ruling on a separate motion for summary judgment. This Court previously granted the City of Riverside's motion for summary judgment. Plaintiff filed a Notice of Appeal on June 10, 2026. On June 11, 2026, Plaintiff filed a notice in this court stating the proceedings are stayed due to the appeal. Plaintiff notes the City and Orangecrest's motions for summary judgment share core, overlapping issues. Plaintiff argues proceeding on the instant motion while the appeal is pending risks inconsistent rulings.

In the second Opposition, Plaintiff argues the merits of the motion. Plaintiff argues Defendants owed Plaintiff a duty under a general duty to exercise ordinary care and through a local city ordinance.

In Reply, moving party again argues the merits of the motion and does not address the pending appeal.

Analysis

I. Effects of Appeal

A judgment entered pursuant to an order granting summary judgment is appealable. (CCP §437c(m); *Oakland Raiders v. National Football League* (2005) 131 Cal.App.4th 621, 628-629.) The judgment is immediately appealable even if claims as to other parties remain to be tried. (*Knapp v. Doherty* (2004) 123 Cal.App.4th 76, 83.) Except as otherwise provided by statute, perfection of an appeal automatically stays further trial court proceedings. (CCP §916(a).) The trial court is permitted to proceed on “any other matter embraced in the action and not affected by the judgment or order” being appealed. (CCP §916(a).)

Here, Plaintiff argues the court cannot hear the instant motion brought by a separate defendant because Plaintiff is appealing the court’s order granting summary judgment for Defendant City. There are multiple issues with Plaintiff’s argument. First, Plaintiff did not appeal the court’s final *judgment* on the motion for summary judgment which was not signed by the Court until June 29, 2026. Rather, Plaintiff’s Notice of Appeal indicates Plaintiff is appealing from a judgment or order that was entered on April 14, 2026. This is simply the *order* on the motion, which is not directly appealable. (CCP §437c(m); *Oakland Raiders v. National Football League* (2005) 131 Cal.App.4th 621, 628-629.) For this reason, the appeal is procedurally improper.¹ An attempted appeal from a nonappealable order has no effect on trial court jurisdiction. (*Hearn Pac. Corp. v. Second Generation Roofing Inc.* (2016) 247 Cal.App.4th 117, 146-147.) For the trial court’s purposes, the case is not stayed.

Additionally, even if the case were stayed given the court’s order granting summary judgment as to Defendant City, that ruling does not stay the matter as to the other defendants. As noted above, the trial court has jurisdiction to “proceed upon any other matter embraced in the action and not affected by the judgment or order” on appeal. (CCP §916(a).) Whether a particular matter is “embraced in” or “affected by” an appealed judgment or order so as to be subject to the stay depends on whether the purpose of the stay (protecting the appellate court’s jurisdiction) would be frustrated by further trial court proceedings on the matter. (*Marriage of Varner* (1998) 68 Cal.App.4th 932, 936.) If trial court proceedings on the particular matter would have any impact on the “effectiveness” of the appeal, the proceedings are stayed. Otherwise, the proceedings are permitted. (*Varian Med. Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 189.) Here, Plaintiff appealed the court’s ruling on City of Riverside’s motion for summary judgment. That ruling has no bearing on Defendant Orangecrest’s motion for summary judgment currently pending before the court. Accordingly, even if Plaintiff had perfected an appeal as to the court’s ruling on City’s motion for summary judgment, this court still would have jurisdiction to hear the instant motion.

¹ In *Mitchell v. Los Robles Regional Medical Center* (2021) 71 Cal.App.5th 291, fn. 2, the Court of Appeal disregarded the same procedural defect where appealing party appealed from an order granting summary judgment and not from the judgment on the order. The court did so “[i]n the interest of justice and to avoid delay.” (Ibid.) Arguably, this court could similarly ignore the procedural irregularity and consider the case stayed. However, the fact still remains that the stay only applies to the City of Riverside and not the motion brought by Orangecrest Community HOA and Action.

Plaintiff initially only opposed the motion on this basis. It seems, though, that Plaintiff realized this argument was not persuasive and later filed an opposition on the merits. For this reason, it appears Plaintiff has abandoned the appeal argument.

II. Plaintiff Filed Two Oppositions

Plaintiff filed two oppositions without leave of court. Again, Plaintiff seems to have realized the argument that the case is stayed given the improperly filed appeal is not meritorious. As a result, Plaintiff filed an Opposition on the merits. Both Oppositions were timely filed.

In a summary judgment motion, the opening and responding memoranda may not exceed twenty (20) pages. (CRC Rule 3.1113(d).) The limited Opposition about the appeal is three (3) pages long. The Opposition on the merits is twenty-five (25) pages long. This exceeds the twenty (20) page limit for Oppositions to motions for summary judgment.

This procedural issue is noted by the court, but the merits of the entire motion and multiple oppositions are addressed in this ruling.

III. Standard on Motion for Summary Judgment

Summary judgment is granted when a moving party establishes the right to entry of judgment as a matter of law. (CCP § 437c(c).) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (CCP § 437c(p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Defendant, as the moving party, has the burden to show either that one or more elements of the cause of action cannot be established or that there is a complete defense to that cause of action. (CCP § 437c(p)(2).) Defendant can meet their burden by showing either: (1) affirmative evidence that shows an element of the claim cannot be established; or (2) showing an absence of evidence on a critical element of Plaintiff's claim.

Once the moving party has made such a showing, the burden shifts to the responding party to show that a triable issue of one or more material facts exists as to that cause of action or as to a defense to the cause of action. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849.) If the responding party does not make such a showing, summary judgment in favor of the moving party is appropriate.

“The purpose of the summary judgment procedure is not to try the issues but merely to discover ... whether the parties *possess evidence* which demands the analysis of trial.” (*Colvin v. City of Gardena* (1992) 11 Cal.App.4th 1270, 1275 (italics added).) Summary judgment can be granted only where the essential facts are either conceded or beyond dispute. If there is one, single material fact in dispute, the motion must be denied.

The court also has the power to summarily adjudicate that one or more causes of action have no merit, that there is no merit to one or more affirmative defenses, or that a defendant owed or did not owe a duty to plaintiff. A motion for summary adjudication shall only be granted if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (CCP §437c(f)(1).)

IV. Request for Judicial Notice

Plaintiff asks the court to take judicial notice of City of Riverside Ordinance 13.06.090 (Exhibit 1 to RJN). Grant. (*City of Monterey v. Carrnshimba* (2013) 215 Cal.App.4th 1068, fn. 5.)

V. Defendant Orangecrest Country Community Association (HOA)

To maintain a cause of action for negligence, the plaintiff must show: (1) a legal duty to use due care; (2) breach of such duty; (3) the breach was the proximate or legal cause of resulting injuries. (*Ladd v. County of San Mateo* (1996) 12 Cal. 4th 913, 917.)

Premises liability is a form of negligence. Accordingly, the elements of a claim for injuries suffered by an invitee due to a dangerous condition on the premises (whether natural or artificial) are duty, breach, causation, and damages. (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1205.) Concerning the elements of duty and breach, a property owner has a duty to exercise ordinary care in using or maintaining his or her property to avoid exposing others to an unreasonable risk of injury; the failure to fulfill this duty is negligence. (*Alcaraz v. Vece* (1997) 14 Cal.4th 1149, 1156.) Liability may be premised based on ownership, possession or control. (*Id.* at 1157-1158.) “Where the absence of ownership, possession, or control has been unequivocally established, summary judgment is proper.” (*Isaacs v. Huntington Memorial Hospital* (1985) 38 Cal.3d 112, 134.)

a. Duty

First, Defendant HOA argues a homeowner’s association generally only owes legal duties to its members as limited by the CC&Rs and by statute. (*Ostayan v. Nordhoff Townhomes Homeowners Association* (2003) 110 Cal.Ap.4th 120, 127-128.) Defendant HOA notes there is an exception under *Francis T. v. Village Green Owners Association* (1986) 42 Cal.3d 490, where a homeowners association was held liable for a resident’s sexual assault when the association had repeated notice and was aware of the high crime rate in the area and did not take steps to address the situation. Here, Defendant HOA notes Freeman is not an association member or resident and was not injured on the association’s property. Thus, HOA contends, it did not owe Freeman any duty to protect him from harm. However, Defendant HOA does not provide any evidence to support that Freeman is not an association member or resident. (See Separate Statement, generally.) As a result, Defendant has not shown it did not owe a duty to Freeman on this basis.

Defendant next discusses liability under California Civil Code §1714: “Everyone is responsible, not only for the result of his or her willful acts, but also for an injury

occasioned to another by his or her want of ordinary care or skill in the management of his or her property or person, except so far as the latter has, willfully or by want or ordinary care, brought injury upon himself or herself.” Defendant then discusses the *Rowland* factors to determine the scope of the landowner’s duty of care. The factors include foreseeability of harm to plaintiff; degree of certainty that plaintiff suffered injury; closeness of the connection between defendant’s conduct and the injury; moral blameworthiness of defendant’s conduct; policy of preventing future harm; burden on defendant and consequences to the community if a duty is imposed; and availability, cost, and prevalence of insurance against the risk of harm. (*Rowland v. Christian* (1968) 69 Cal.2d 108, 112-113 (superseded by statute on other grounds as stated in *Calvillo-Silva v. Home Grocery* (1998) 19 Cal.4th 714, 722-723, fn. 7).) Confusingly, Defendant does not then discuss the *Rowland v. Christian* factors. Instead, Defendant argues it “exercised reasonable care” to maintain the property in a safe condition by retaining Park West, a professional landscaping company, to perform regular maintenance on the property. The facts presented to support the assertion that Defendant exercised reasonable care go to the issue of whether Defendant breached its duty and not whether Defendant owed Plaintiff a duty in the first place. Importantly, since Defendant is the moving party, it is Defendant’s burden to affirmatively negate the existence of a duty. (*Eriksson v. Nunnink* (2011) 191 Cal.App.4th 826, 849, fn. 16 (“it was incumbent on [party moving for summary judgment] to set forth in her separate statement of undisputed facts a clear statement negating the element of duty”).)

Defendant makes two specific arguments with respect to why it did not owe Plaintiff any duty. First, Defendant argues it did not have any actual or constructive notice of a dangerous condition and thus had no opportunity to remedy it. Whether a landowner had knowledge of a dangerous condition is an issue of whether the landowner had a duty to protect against said dangerous condition. (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1206.) Defendant provides evidence it did not receive any notice or warning from anyone that the intersection, or the landscaping at the intersection, might present a dangerous condition. (SUMF Nos. 40-41.) Both Defendants were unaware of any accidents that had ever occurred at the subject intersection. (SUMF No. 42.) This evidence establishes Defendant did not have actual notice of any dangerous condition. Plaintiff does not dispute these facts. Thus, Defendant did not have actual notice of any dangerous condition.

Defendant also contends it did not have constructive notice of a dangerous condition. The City of Riverside’s records indicate there have not been any other accidents at this intersection since the area was developed in 2003. (SUMF No. 46.) The City did not receive any 311 complaints about any potential dangerous conditions at the intersection. (SUMF No. 50.) The City most recently performed a re-pavement and restriping project at the intersection one month before the accident and did not report any conditions believed to impede the safe passage of traffic. (SUMF Nos. 51-52.) Neither Harrington nor Freeman avoided the intersection prior to the accident for any reason and both drove through the intersection frequently. (SUMF Nos. 25, 27, 28.) This evidence meets Defendant’s initial burden to establish that Defendant did not have constructive notice of any dangerous condition.

In Opposition, Plaintiff attacks the declaration of Philip Nitollama, traffic and civil engineer, employed by the City of Riverside as the City's Traffic Engineer. (Nitollama Decl. ¶2.) Nitollama's declaration was originally filed in support of Defendant City's motion for summary judgment. That same declaration is now being submitted in support of the HOA's motion for summary judgment. (Darbinyan Decl. Ex. N.) Nitollama's declaration references a 2025 Engineering and Traffic Speed Survey. That survey is also attached to Darbinyan's Declaration as Exhibit M. Plaintiff challenges this evidence arguing Nitollama did not provide any foundation concerning how the traffic speed survey data was collected or maintained. (Plaintiff's Response to Defendant's SUMF Nos. 44-46.) Nitollama states: "In June 2017, the City completed a traffic study to evaluate the amount of traffic using Grove Community Drive during a typical 24-hour period. The study was completed using a professional traffic data collection services company, and was performed on June 7, 2027. During the study, traffic was counted in the segment of road immediately east of the accident location, such that traffic moving through the intersection of Grove Community Drive and Maple Lane would be accounted for. The results of the study showed that 3,433 vehicles were counted over a 24-hour period. Of that amount, 1,745 of the counted vehicles were travelling westbound on Grove Community Drive." (¶¶11-12.) Nitollama then attached a copy of the data obtained during the study as Exhibit J. (¶12.) Since this is a reproduction of Nitollama's declaration that was provided in support of a different motion for summary judgment, Nitollama's declaration does not have anything attached to it. Instead, Attorney Darbinyan's declaration provides the "2025 Engineering and Traffic Speed Survey as referenced in the deposition of Riverside City traffic engineer Philip Nitollama, as cited in Exhibit J at page 57." (Darbinyan Decl. ¶14, Exhibit M.) The document identified as Exhibit M is a one-page document with an "Exhibit 7" designation in the top-right corner. The document is not signed. It does not support Nitollama's statement that 3,433 vehicles were counted over a 24-hour period or that 1,745 of those vehicles were traveling westbound on Grove Community Drive. Exhibit M does not support Nitollama's statements in paragraphs 11 and 12 of his declaration. For this reason, Plaintiff has properly disputed SUMF Nos. 44-46. Defendant cannot rely on SUMF Nos. 44-46 in support of the motion. This evidence, however, is just one piece of Defendant's evidence to demonstrate it did not have constructive notice of any dangerous condition.

Defendant also submits evidence in support of SUMF Nos. 50-52 to demonstrate it did not have constructive notice. Plaintiff does not dispute SUMF Nos. 50 and 51. Defendant asserts during the May 2023 repavement and restriping project, no City employee reported any conditions within the easement believed to impede the safe passage of traffic on Grove or at the intersection. (SUMF No. 52.) In Opposition, Plaintiff provides the declaration of Matthew Manjarrez, a civil engineer and traffic consultant. Manjarrez reviewed documents related to the case, including the police report, photographs, body worn camera footage, and deposition testimony. Manjarrez also performed a site inspection on December 21, 2023. (Manjarrez Decl. ¶¶15, 20.) As part of the site inspection, Manjarrez observed, evaluated, measured, and photographed the sight distance available to drivers turning from Maple Lane onto Grove Community Drive. (¶21.) Manjarrez provides pictures of his inspection. Manjarrez found: "It is my professional opinion as a civil and traffic engineer that insufficient sight distance was provided on the day of the Freeman collision to satisfy the standards and guidelines set forth in the [Highway Design Manual]. It is further my professional opinion as a civil

engineer and a traffic engineer that the vegetation adjacent to the Grove Community Drive along with the rise and fall of the road and the curvature of the roadway limit sight distance below 481 feet. Therefore, the corner sight distance provided for the Maple Lane approach to the subject intersection failed to comply with the standards and specifications of the [Highway Design Manual].” (§29.)

Manjarrez also states it is his “professional opinion as a civil engineer and a traffic engineer that a portion of the landscaping that limits the sight distance provided for the Maple Lane approach to the subject intersection is within the private easement reserved for landscape purposes for which maintenance is the responsibility of the homeowners association.” (§30.) Finally, Manjarrez states it is his professional opinion that “the insufficient sight distance at the intersection of Grove Community Drive and Maple Lane resulted in a significant risk of injury to drivers who are turning from Maple Lane or traveling through the intersection westbound on Grove Community Drive.” (§32.) Defendant argues a reasonable jury could conclude the inadequate sight distance created by the landscaping existed long enough to be discovered by Defendants through the exercise of reasonable care. (Opp. p.19:4-6.) Plaintiff’s evidence is enough to create a triable issue of material fact.

Second, Defendant argues it did not owe any duty to anticipate negligent motorists. Defendant relies on Civil Code² Section 1714 and argues a landowner is not liable for injuries sustained by another when the injured party has willfully or negligently caused their own harm. Defendant provides evidence the collision resulted from both drivers’ failure to exercise reasonable care. Specifically, Freeman was operating his motorcycle above the speed limit. (SUMF Nos. 6, 17.) Harrington failed to properly account for oncoming traffic before making a turn and Officer Cleary testified it was Harrington’s failure to do so that resulted in the collision. (SUMF Nos. 13-14, 22.)

In Opposition, Plaintiff argues California law does not relieve a property owner of liability merely because another person’s negligence also contributed to the injury. (*Garcia v. Paramount Citrus Assn., Inc.* (2008) 164 Cal.App.4th 1448, 1457 (“a landowner is not insulated from liability merely because a third party was the immediate cause of a plaintiff’s injury”).) Plaintiff argues the real question to establish whether defendant owed a duty to Plaintiff is the foreseeability of the harm. Plaintiff is correct. Even if the court were to agree that Defendant did not have any duty to anticipate negligent motorists, there is a triable issue of material fact as to whether Defendant owed Plaintiff a duty.³ Thus, the motion must be denied.

b. Causation

Defendant next argues the acts and omissions of the HOA were not a substantial cause of Freeman’s injuries. The motion is supported by testimony from the officer who

² Defendant cites to the Code of Civil Procedure, but it is from the Civil Code.

³ Plaintiff also argues Defendant owed Plaintiff a duty imposed by City of Riverside Ordinance 13.06.090 to reasonably maintain the landscaping within the easement so as to not create an unreasonable risk to Plaintiff. (RJN Ex. 1.) Defendant did not discuss this argument in Reply. Given the existence of a triable issue of material fact as to the issue of whether Defendant owed Plaintiff a duty, the court need not consider this argument.

responded to the scene of the accident and investigated the crash, Officer Cleary. At the end of his investigation, Officer Cleary determined the crash was caused by Harrington's violation of Vehicle Code §21802(a) failure to yield to oncoming traffic. Officer Cleary did not determine anything else was the cause of the accident. (SUMF Nos. 21-22.) Additionally, neither Freeman nor Harrington could pinpoint a specific hazardous condition that created a visual obstruction on the street. (SUMF No. 24.) Harrington testified that even if the bushes in the area had blocked her view they would not have prevented her from seeing the entire motorcycle. (SUMF No. 30.) Harrington testified the trees in the landscaped area did not obstruct her view of the motorcycle on the day of the accident. (SUMF No. 30-32.) Defendant provides a picture from the scene of the accident that depicts Harrington's car in the middle of the street, which is where it was when Freeman's motorcycle collided with it. The photograph indicates the vehicle was well into the middle of the intersection at the time of the collision and was past any of the landscaping on the sidewalk. (SUMF No. 15.)

This evidence meets Defendant's initial burden to establish its actions or inactions were not the cause of Plaintiff's injuries. The burden now shifts to Plaintiff to provide evidence of a triable issue of material fact. Plaintiff references Manjarrez's declaration and again notes the expert concluded the available sight distance for a driver exiting Maple was inadequate and failed to satisfy accepted engineering standards. (PUMF Nos. 17-20, 25-28.) Plaintiff notes there is evidence a motorist positioned at the limit line could not adequately observe approaching westbound traffic on Grove. (PUMF Nos. 17-18, 25, 29.) Plaintiff presents evidence that a combination of the block wall, vegetation and foliage, in conjunction with the road's geometry created inadequate sight distance for motorists attempting to enter Grove. (PUMF Nos. 17-21, 26, 29.) Plaintiff argues whether those conditions materially impaired Harrington's ability to observe Plaintiff is plainly a question of fact for the jury. Plaintiff is correct. Plaintiff's evidence demonstrates there is a triable issue of material fact as to whether Defendant's actions caused Plaintiff's injuries. That issue cannot be resolved by the instant motion. The motion must be denied.

VI. Defendant Action Property Management

Defendant Action Property Management argues it "played no possible role in the accident" and did not owe Plaintiff any duty that was breached. Defendant Action is a third-party vendor of the HOA and is an independent contractor. (SUMF No. 54.) Action does not own any right, title, or interest in the property owned by the Association. Action does not direct the landscaper on how to do its job. (SUMF No. 55.) This evidence is sufficient to meet Defendant Action's initial burden to show it did not owe Plaintiff any duty.

In Opposition, Plaintiff provides evidence that Action coordinated maintenance activities, supervised vendors responsible for maintaining the common areas, and undertook responsibilities relating to inspection, property management, and landscaping maintenance. (PUMF No. 36.) Cross-Defendant Hanson Family Trust identified Action as one of the entities that exercised "ownership, control, maintenance, inspection, and/or landscaping functions" with respect to the common-area vegetation near the intersection. (PUMF No. 37.) Action acted as HOA's representative in its business with

Park West Landscaping and had the authority to inspect the common areas and direct Park West to undertake “Extra Work” which could include maintenance to ensure that landscaping in the easement did not obstruct the view of drivers. (PUMF No. 39.) Plaintiff’s evidence contradicts Actions’ contention that it was not involved in managing or inspecting the landscaping in any way. This creates a triable issue of material fact. The motion must be denied.

VII. Ruling

The instant matter is not stayed.

Deny the motion as to Defendant Orangecrest Country Community Association and Defendant Action Property Management.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2500097	COLLINS vs WAYFAIR, LLC	MOTION TO QUASH THE CIVIL SUBPOENA DUCES TECUM FOR PERSONAL APPEARANCE AND PRODUCTION OF DOCUMENTS, ELECTRONICALLY STORED INFORMATION, AND THINGS AT TRIAL - TEMECULA RECOVERY CENTER

Tentative Ruling:

Off calendar

3.

CASE #	CASE NAME	HEARING NAME
CVRI2500097	COLLINS vs WAYFAIR, LLC	MOTION TO QUASH THE CIVIL SUBPOENA DUCES TECUM FOR PERSONAL APPEARANCE AND PRODUCTION OF DOCUMENTS, ELECTRONICALLY STORED INFORMATION, AND THINGS AT TRIAL - RANCHO FAMILY MEDICAL GROUP

Tentative Ruling:

Off calendar